

20	20
19	19
18	18
17	17
16	16
15	15
14	14
13	13
12	12
11	11
10	10
9	9
8	8
7	7
6	6
5	5
4	4
3	3
2	2
1	1
0	0

Case No. 2:25-CV-00405-RMG-MGB

and Judge Baker have **continued to issue substantive rulings** and orders affecting Plaintiff's rights, discovery, and the overall posture of this case.

II. PROCEDURAL POSTURE AND CONTINUING PREJUDICE WHILE RECUSAL IS PENDING

5. This case was reassigned on or about **October 7, 2025**, from District Judge David C. Norton and Magistrate Judge Molly H. Cherry to District Judge Richard M. Gergel and Magistrate Judge Mary Gordon Baker.
6. Following reassignment, Magistrate Judge Baker issued a **series of rulings almost uniformly adverse to Plaintiff**, including but not limited to:
 - a. Denying or declaring “moot” multiple discovery-related motions and motions to compel non-party compliance;
 - b. Granting non-party Apple Inc.’s motion for a protective order while denying Plaintiff’s motions to compel Apple to complete production;
 - c. Reversing or undercutting subpoena-related relief that had previously been granted under Magistrate Judge Cherry; and
 - d. Declaring Plaintiff’s Motion for Protective Order regarding mediation scheduling “moot” only after extending mediation and discovery deadlines in a manner that aligned with defense counsel’s stated preferences.
7. District Judge Gergel has likewise **relied on filings that did not appear or could not be accessed on Plaintiff’s public docket** while granting extensions and accommodations to corporate non-parties and Defendants, and has not corrected the docket manipulation and missing or inaccessible filings raised by Plaintiff.
8. In addition to the general docket irregularities described in the December 2 Recusal Motion, Plaintiff has identified specific entries on the CM/ECF docket but whose **underlying documents cannot be viewed**. In particular, docket entries **ECF 218 and ECF 219** only appeared after Plaintiff contacted the 4th Circuit Appellate Court for Judicial Misconduct.
9. Most recently, on **December 11, 2025**, Plaintiff again attempted to access ECF 218 and ECF 219 from her CM/ECF account. Docket entries **ECF 218 and ECF 219** are listed on Plaintiff’s public docket when she logs into CM/ECF, but when she clicks on those entries, **no document is displayed**. There is no notation indicating that ECF 218 or 219 are sealed, restricted, or otherwise unavailable to the parties.

Case No. 2:25-CV-00405-RMG-MGB

10. Despite this, the Court and/or defense counsel have referenced ECF 218 and ECF 219 in a manner that makes clear those filings **exist and are being considered**, while Plaintiff—as the pro se civil-rights plaintiff—cannot meaningfully access them. This creates the appearance of a **two-tier docket system**, in which materials that directly affect Plaintiff's rights are available to the Court and to counsel but **functionally withheld from Plaintiff herself** without any seal notation or explanation. A reasonable, informed observer would question whether the docket is being **manipulated or selectively obscured** in a way that disadvantages Plaintiff and protects Defendants and third-party corporations.
 11. Plaintiff has also prepared a separate summary (referred to as “Summary of Post-Reassignment Orders and Denials”) documenting a **consistent pattern of denials of Plaintiff's motions** and preferential treatment of Defendants and corporate third parties, including Apple, Microsoft, Verizon, Motorola, and Honda.
 12. While the serious allegations in the December 2 Recusal Motion remain pending and unresolved, the Court has continued to enter orders affecting **discovery deadlines, mediation deadlines, and third-party response schedules**, thereby **deepening** the very appearance of bias that 28 U.S.C. § 455(a) is designed to prevent.
-

III. LAW: DUTY TO PROMPTLY ADDRESS RECUSAL AND AVOID APPEARANCE OF BIAS

13. Under 28 U.S.C. § 455(a), a judge must disqualify himself or herself “in any proceeding in which his impartiality **might reasonably be questioned**.” The standard is objective and focuses on the perspective of a reasonable, well-informed observer.
 14. Under § 455(b)(1), recusal is required where the judge has a personal bias or prejudice concerning a party, or personal knowledge of disputed evidentiary facts concerning the proceeding.
 15. Courts have recognized that where a serious, fact-intensive recusal motion is pending, a judge **should not continue to issue contested substantive rulings** that materially affect the rights of the moving party. Continued rulings in the face of unresolved recusal allegations can **deepen the appearance of bias** and raise due process concerns, even if no actual subjective bias is proven.
 16. Plaintiff's December 2 Recusal Motion details a pattern of **procedural anomalies, missing or inaccessible filings, and one-sided rulings** which, if left unresolved while the same judges continue to rule on key issues, would cause a reasonable observer to question this Court's impartiality and the fairness of these proceedings.
-

Case No. 2:25-CV-00405-RMG-MGB

IV. SUPPLEMENTAL / RENEWED GROUNDS FOR RECUSAL

17. Plaintiff submits this **Renewed and Supplemental Motion** not to restate every detail in the December 2 Recusal Motion, but to:

- a. Emphasize that **no ruling** has yet been made on recusal;
- b. Highlight that **substantive rulings and scheduling orders continue to issue** while recusal is pending; and
- c. Call the Court's attention to a **specific pattern** in Magistrate Judge Baker's rulings, which have focused heavily on **motions involving third-party subpoenas** and have consistently operated to restrict Plaintiff's ability to obtain or enforce those subpoenas, including in motions filed **before** Judge Baker was even assigned to the case.

A. Pattern of Targeting Third-Party Subpoenas

18. After reassignment, Magistrate Judge Baker did not simply begin ruling on newly-filed matters. Instead, she **reached back to earlier subpoena-related motions** and undertook to rule on them in a manner that cut off or undermined Plaintiff's previously authorized discovery.

19. This pattern includes, but is not limited to:

- a. Revisiting and effectively reversing prior subpoena authorizations issued by Magistrate Judge Cherry;
- b. Granting protections or relief to third-party corporations while denying or limiting Plaintiff's efforts to enforce subpoenas across multiple jurisdictions; and
- c. Treating Plaintiff's attempts to secure critical cyber-intrusion, comparator, and other third-party evidence as "moot," "premature," or otherwise unworthy of enforcement, even while discovery deadlines remained in place.

20. The result is that Plaintiff's ability to gather evidence from non-party entities—evidence that is central to her civil-rights claims—has been **systematically weakened** by rulings that almost uniformly favor Defendants and third-party corporations.

B. Denial of ECF 105 Despite Subpoenas Already Having Been Issued

21. A concrete example is **ECF 105**, where Plaintiff requested subpoenas that **had already been issued**. Rather than clarifying that the motion was moot because the subpoenas remained valid and enforceable, Magistrate Judge Baker **denied** the motion outright.

Case No. 2:25-CV-00405-RMG-MGB

22. The order denying ECF 105 did not explain:

- a. Whether the previously issued subpoenas remained valid and enforceable; or
- b. Whether the Court was retroactively nullifying, limiting, or otherwise undercutting those already-issued subpoenas.

23. From Plaintiff's perspective, this created **real confusion and reasonable fear** that the Court was attempting to **reach backward** and interfere with subpoenas she had already obtained at significant expense and effort, including travel and filing fees in other jurisdictions.

24. When viewed along with the broader pattern of refusing to enforce third-party subpoenas (including those directed to Apple, Microsoft, Verizon, Motorola, and Honda), the denial of ECF 105 reinforces an **overall pattern**: Magistrate Judge Baker's rulings concentrate on subpoena-related motions and, in practice, largely operate to **prevent Plaintiff from obtaining third-party evidence**, while extending accommodations and protections to corporate non-parties and Defendants.

C. Intimidating Impact on Comparator Witness Cooperation

25. The prejudice from the Court's refusal to meaningfully enforce Plaintiff's third-party subpoenas is not theoretical. It has directly affected the willingness of comparator witnesses to cooperate. For example, comparator witness **Brian Fogarty** told Plaintiff words to the effect of, "you don't have the power of the court," when she attempted to obtain his cooperation regarding relevant evidence.

26. Mr. Fogarty's statement reflects the practical reality that, in light of the Court's pattern of denying or undercutting Plaintiff's subpoena efforts, witnesses reasonably believe that Plaintiff—as a pro se civil-rights litigant—lacks any real "power of the court" behind her subpoenas or requests for testimony. This perception is reinforced when the Court refuses to enforce Plaintiff's subpoenas, reverses previously issued subpoena authority, and extends protections to corporate and institutional actors while providing no comparable support for Plaintiff's evidence-gathering.

27. A reasonable, informed observer would understand that when comparator witnesses openly state that Plaintiff "does not have the power of the court," and that statement is borne out by a documented pattern of non-enforcement and adverse subpoena rulings, the appearance of bias is not abstract. It has **concrete consequences** for Plaintiff's ability to prove her claims.

28. These concerns are further **compounded** by the fact that, as of December 11, 2025, Plaintiff can see docket entries **ECF 218 and ECF 219** listed on CM/ECF but **cannot**

Case No. 2:25-CV-00405-RMG-MGB

open or view the underlying documents, even though they are being relied upon by the Court. Combined with the subpoena rulings and ECF 105, this contributes to the appearance that critical parts of this proceeding are being conducted outside Plaintiff's view and to her detriment.

29. A reasonable, informed observer reviewing:

- a. The reassignment on or about October 7, 2025;
- b. Judge Baker's focused intervention into subpoena practice, including motions filed before her assignment;
- c. The confusing denial of ECF 105 despite the subpoenas already having been issued;
- d. The existence of docket entries ECF 218 and 219 that Plaintiff can see listed but cannot access; and
- e. The fact that a comparator witness has told Plaintiff she "does not have the power of the court,"

would **necessarily question the impartiality** of both Judge Gergel and Judge Baker. Combined with the docket irregularities and one-sided rulings described in the December 2 Recusal Motion, these facts **deepen the appearance of bias** and the risk of actual prejudice.

V. NOTICE OF OVERSIGHT AND PRESERVATION OF CIVIL RIGHTS

- 30. Plaintiff further gives notice that she will continue to seek review by appropriate oversight authorities, including the **Fourth Circuit Judicial Council**, the **Judicial Conference of the United States**, and appropriate **civil-rights and law-enforcement agencies**, regarding what she reasonably believes to be ongoing **color-of-law violations** and **deprivations of her civil rights** in connection with the handling of this case.
 - 31. Plaintiff does not make this statement as a threat or an attempt to intimidate the Court, but rather as a clear record that she **will not acquiesce in continuing violations** of her constitutional and statutory rights. Plaintiff expressly preserves all rights and remedies under **federal civil-rights law, including 42 U.S.C. § 1983, 18 U.S.C. § 242**, and any other applicable provisions, with respect to the conduct described in her prior filings, the December 2 Recusal Motion, and this Renewed and Supplemental Motion.
-

VI. RELIEF REQUESTED

Case No. 2:25-CV-00405-RMG-MGB

For the reasons set forth in this Renewed and Supplemental Motion, and as fully detailed in Plaintiff's December 2 Recusal Motion, Plaintiff respectfully requests that the Court:

1. **Grant recusal of District Judge Richard M. Gergel** from further involvement in this matter pursuant to 28 U.S.C. § 455(a) and § 455(b)(1);
2. **Grant recusal of Magistrate Judge Mary Gordon Baker** from further involvement in this matter pursuant to 28 U.S.C. § 455(a) and § 455(b)(1);
3. **Order immediate reassignment** of this case to a neutral Article III judge who has had no prior connection to the parties, the issues, or the rulings challenged in the December 2 Recusal Motion;
4. **Direct that all issues affected by the disputed rulings** of Judge Gergel and Judge Baker—including discovery, subpoenas, missing, delayed, or inaccessible docket entries, and protective orders—be subject to **de novo review** by the reassigned judge;
5. **Enter a limited stay** of further substantive rulings on contested discovery, dispositive motions, and mediation scheduling pending final resolution of the recusal issue; and
6. Grant **such other and further relief** as the Court or the reassigned judge deems just and proper to restore confidence in the fairness and integrity of these proceedings.

Exhibit A – Summary of Post-Reassignment Orders and Denials

Respectfully submitted this 11th day of December, 2025.



Debra Nelson
Plaintiff, Pro Se

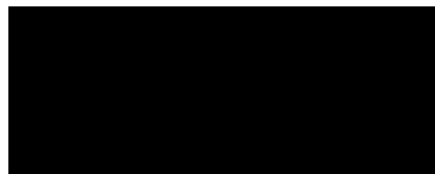


Exhibit A – Summary of Post-Reassignment Orders and Denials

Case reassignment October 7, 2025

District Judge David C. Norton to District Judge Richard M. Gergel (ECF 151)

Magistrate Judge Molly H. Cherry to Magistrate Judge Mary Gordon Baker (ECF 157)

Rulings by Magistrate Judge Mary Gordon Baker

Denied Motions

ECF 138 – Text Order Plaintiff's Motion to Expedite Reissuance of Subpoenas filed 10/2/2025. Judge Baker Motion is Moot. **Text Order ECF 160**

"TEXT ORDER. The record shows that the subpoenas at issue in Plaintiff's Motion to Expedite Reissuance of Subpoenas (Dkt. No. 138) were reissued by the Clerk of Court on October 2, 2025. (Dkt. Nos. 141; 142.) Accordingly, Plaintiff's 138 Motion is MOOT. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/7/2025.(dgar) (Entered: 10/07/2025)"

ECF 140 – Text Order Dismissed Plaintiff's Renewed Motion to Compel Party Discovery Responses, to Enforce Non-Party Subpoenas Duces Tecum, and for Entry-Onto-Land Inspection Under Rule 34. **Text Order ECF 168**

"TEXT ORDER. Plaintiff has filed a notice withdrawing her Renewed Motion to Compel at Dkt. No. 140. (Dkt. No. 162.) Accordingly, the Court DISMISSES Plaintiff's 140 "Renewed Motion to Compel Party Discovery Responses, to Enforce Non-Party Subpoena Duces Tecum, and for Entry-Onto-Land Inspection Under Rule 34." IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/9/2025.(dgar) (Entered: 10/09/2025)

ECF 114 – Filed 9/22/2025 Plaintiff's Motion to Compel is Dismissed as Moot. Microsoft Corporation to Comply with subpoena Duces Tecum. Judge Baker takes Microsoft's argument as her own. **Text Order ECF 183**

"TEXT ORDER denying 114 Motion to Compel. On September 22, 2025, Plaintiff filed a Motion to Compel (Dkt. No. 114) seeking a Court order "compelling nonparty Microsoft Corporation to comply with Plaintiff's subpoena duces tecum dated September 12, 2025." (Id. at 1.) In a response dated October 6, 2025, non-party Microsoft Corporation ("Microsoft") contends, inter alia, that Plaintiff's motion should be denied because it is moot and premature, and was filed in the wrong forum. (Dkt. No. 150 at 1.) Upon review, the undersigned agrees.

First, Plaintiff filed her Motion to Compel (Dkt. No. 114) before Microsoft's time to respond expired. (See, e.g., Dkt. Nos. 150-1, 150-2.) As the Court has already informed

Plaintiff, motions to compel filed before the response deadline has run will be denied as premature. (See Dkt. No. 118.)

*Further, as Microsoft correctly notes, Federal Rule of Civil Procedure 45 requires that "when a party seeks to compel a non-party's action pursuant to a subpoena duces tecum, the party must file its motion to compel in the district where the sought documents are located, not in the district where the subpoena was issued." Oakwood Prods., Inc. v. SWK Techs., Inc., No. 9:20-CV-04107-DCN, 2022 WL 7108844, at *8 (D.S.C. Oct. 12, 2022). Here, Plaintiff's Motion to Compel (Dkt. No. 114) fails to comply with the jurisdictional requirements of Rule 45(d)(2)(B)(i), and Microsoft has explicitly declined to consent to this Court's jurisdiction. (Dkt. No. 150 at 6.) Accordingly, Plaintiff's Motion to Compel must be DENIED pursuant to Federal Rule of Civil Procedure 45.*

*Even assuming, arguendo, that Plaintiff could overcome the aforementioned defects, the Motion to Compel (Dkt. No. 114) is MOOT. Indeed, Microsoft's response states that "Microsoft has determined that there are no responsive documents within its possession, custody, or control, after conducting a reasonable investigation and complying with all applicable preservation obligations." (Dkt. No. 150 at 4.) Microsoft has attached evidence confirming the same as exhibits to its response (Dkt. Nos. 150-1, 150-2.) The Court cannot compel Microsoft to furnish information it does not possess. See, e.g., Moore v. BPS Direct, LLC, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at *2 (D.S.C. July 8, 2019) ("It is axiomatic that a party cannot be ordered to produce documents that do not exist."); Jackson v. Wade, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at *5 (E.D. Va. Apr. 19, 2021), appeal dismissed, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) ("[A] subpoena can only direct an individual or entity to produce materials in their 'possession, custody, or control,' and thus cannot compel an entity to create a new document... out of whole cloth."). As such, Plaintiff's Motion to Compel (Dkt. No. 114) would alternatively be DISMISSED AS MOOT. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(dgar) (Entered: 10/17/2025)"*

ECF 180 – Notice of Procedural Prejudice and Request for Reimbursement of Costs Judge Baker denied. Even though the judicial delays contributed to the costs. **Reference Order 186**

"REFERENCE ORDER 185 denying 180 Motion Limited Relief. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(dgar) (Entered: 10/17/2025)"

ECF 177 – Plaintiff's Supplemental Motion to Compel and Request for Sanctions filed on 10/14/2025. This Motion was filed due to defense counsel's discovery abuse, witness interference and witness tampering. **Text Order ECF 190**

"TEXT ORDER denying 177 Motion to Compel; denying 177 Motion for Sanctions. On October 14, 2025, Plaintiff filed a Motion to Compel and Request for Sanctions (Dkt. No. 177) taking issue with Defense counsel's purported failure to produce "Curtiss-Wright employee Jeff Womack" for deposition. (Id. at 2.) Plaintiff specifically claims that Defense counsel has repeatedly misstated that Mr. Womack is on medical leave until November 2, 2025 and is therefore unable to be deposed until after that date. (See generally Dkt. Nos. 177, 177-2.)

Accordingly, Plaintiff asks the Court to compel Mr. Womack's deposition and impose sanctions on Defense counsel for "bad-faith misrepresentations and interference with witness testimony." (Dkt. No. 177 at 34.) In support of her motion, Plaintiff has attached various exhibits, including her email correspondence with Defense counsel and screenshots of her personal text messages with Mr. Womack. (Dkt. Nos. 177-2, 177-3, 177-4, 177-5.) Contrary to Plaintiff's assertions, the exhibits attached to Plaintiff's motion indicate that Defense counsel has agreed to produce Mr. Womack for deposition upon his return to work and in advance of the discovery deadline, November 5, 2025. (Dkt. No. 177-2 at 5, 7, 8.) In light of Defense counsel's clear willingness to allow Plaintiff to depose Mr. Womack in advance of the discovery deadline, the undersigned sees no reason to compel Mr. Womack's deposition or impose sanctions on Defense counsel. Plaintiff's Motion to Compel and Request for Sanctions (Dkt. No. 177) is therefore DENIED. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(kman,) (Entered: 10/17/2025)"

ECF 105 & 176 – ECF 105 Plaintiff's Notice of Non-Party Subpoenas to Service Providers. This notice was in reference to third party subpoenas to Microsoft, Apple, Google, Verizon, Motorola and Honda. These subpoenas are essential to proving my privacy invasion and cyber intrusion claims filed 9/16/2025 before Judge Baker's assignment to my case. ECF 176 was a motion filed to prevent Andrew Countryman the attorney representing Bonnie Hunt from convoluting the record with irrelevant filings. Countryman objected to the subpoena I was issued by Judge Cherry and said my assertion that the court issued the subpoena was incorrect. **Text Order ECF 192**

"ORDER denying 105 Motion to Compel; denying 176 Motion for Protective Order; denying 176 Motion to Strike. Signed by Magistrate Judge Mary Gordon Baker on 10/20/2025.(dgar) (Entered: 10/20/2025)"

ECF 103, 129 & 173 - Plaintiff's Motion to Compel Apple Inc. to Produce Documents was docketed 9/16/2025. This request was due to Apple Inc. submitting incomplete documents in reference to the subpoena that they were issued. Judge Baker granted Apple's Motion for a Protective Order. Plaintiff filed a renewed Motion to Compel because Apple's production stopped on 8/23/23 which was not sufficient discovery production considering that I had another cyber intrusion event on 9/10/25. **Text Order ECF 194**

"ORDER denying 103 Motion to Compel; granting 129 Motion for Protective Order; denying 173 Motion to Compel. Signed by Magistrate Judge Mary Gordon Baker on 10/21/2025.(dgar) (Entered: 10/21/2025)"

ECF 199 – Plaintiff's Motion for Recusal of Magistrate Judge Mary Gordon Baker and request to Vacate Prior Orders was filed 10/27/2025. This motion was inreference to the one-sided rulings and the unexplainable reversal of a subpoena issued to Bonnie Hunt that was reviewed by Judge Cherry and issued by the clerk. **Text Order ECF 204**

"ORDER denying 199 Motion for Recusal. Because Plaintiff has presented no valid basis for disqualification, her motion (Dkt. No. 199) is DENIED. However, in an abundance of caution and in deference to Plaintiff's pro se status, the undersigned will allow Plaintiff additional time to request the information in the nonparty subpoena at issue in Plaintiff's motion from Defendants. Defendants shall provide this information to Plaintiff by

December 5, 2025. To the extent no such information exists, Defendants shall provide Plaintiff with an affidavit stating the same. Signed by Magistrate Judge Mary Gordon Baker on 10/30/2025.(dgar) (Entered: 10/30/2025)"

ECT 227 – Plaintiff's Motion for Protective Order Regarding Mediation Scheduling and Dates of Unavailability filed 11/25/2025. In this motion defense coordinated with a potential mediator Kristi Harrington to pressure me into mediation dates that were favorable to attorney T. Chase Samples because he wanted to go on another vacation. Ms. Harrington stated that she was sure the court would allow an extension to the mediation dates if I couldn't agree to meet prior to 12/30/2025. She would only be able to assert this unless she heard this from Samples. **Text Order ECF 238**

"TEXT ORDER finding as moot 227 Motion for Protective Order. In light of the extended mediation deadline, Plaintiff's Motion for Protective Order Regarding Mediation Scheduling and Dates of Unavailability (Dkt. No. 227) is rendered MOOT. The Court asks Defendants to be mindful of Plaintiff's unavailability from December 20-27, 2025 and January 4-10, 2026. Defendants are further advised to include Plaintiff on their communications with the mediator regarding scheduling moving forward. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/04/2025. (kman,) (Entered: 12/04/2025)"

Granted Motions

ECF 163 – Text Order granting Motion to Reissue Subpoenas; denying ECF 180 Motion for Limited Relief. Judge Baker granted my reissuance of subpoenas because of all the judicial delay in issuing the subpoenas I didn't have enough time to issue them to Verizon. She denied the Limited Relief of me requesting that the Clerk issue the subpoenas as a personal pickup from the window. **Text Order ECF 185**

"TEXT ORDER granting 163 Motion to Reissue Subpoenas; denying 180 Motion for Limited Relief. On October 8, 2025, Plaintiff filed a Motion to Reissue Subpoenas pertaining to subpoenas she previously issued to non-parties Verizon Wireless and Motorola Solutions, Inc. (Dkt. No. 163.) In her Motion, Plaintiff explains that "Verizon's Subpoena Compliance Department [informed her] that production could not be directed to Plaintiff's home address and must instead be returnable to... a third-party custodian." (Id. at 1.) Plaintiff explains that she has now designated a third party entity as her records custodian and therefore asks that the Court reissue an updated subpoena to Verizon Wireless. (Id.) Plaintiff further explains that her original subpoena to "Motorola Solutions, Inc." identified the wrong party and asks that the Court issue a subpoena for "Motorola Mobility, LLC" instead. (Id.)

Upon review, the undersigned finds that Plaintiff's Motion to Reissue Subpoenas (Dkt. No. 163) should be GRANTED. The Clerk of Court is directed to issue the Third Party Subpoenas submitted by Plaintiff in connection with her Motion (Dkt. No. 170), and to return the issued subpoenas to Plaintiff for prompt service upon the third parties. Plaintiff is reminded that she is responsible for service of the subpoenas, in accordance

with the provisions set forth in Rule 45 of the Federal Rules of Civil Procedure. Moreover, Plaintiff is responsible for paying all costs associated with the production of documents requested by the subpoenas.

Further, it is not yet clear that non-parties Verizon Wireless and Motorola Solutions, Inc. will be unable to comply with the newly issued subpoenas by the November 5, 2025 discovery deadline. As such, Plaintiff's request to extend the discovery deadline on this basis (Dkt. No. 180) is DENIED, without prejudice and with leave to refile should non-parties Verizon Wireless and Motorola Solutions, Inc. indicate they are unable to comply with the newly issued subpoenas by November 5, 2025. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(dgar) (Entered: 10/17/2025)"

ECF 198 – Plaintiff's Motion for Extension of Time to Complete Discovery was granted. The extension was due to judicial review delays and issuance by the clerk of court. I was unable to submit the Verizon subpoena because of it. **Text Order ECF 200**

*"TEXT ORDER granting 198 Motion for Extension of Time to Complete Discovery. On October 27, 2025, Plaintiff filed a Motion for Extension of Time to Complete Discovery requesting that the Court "extend the discovery period to December 5, 2025, for the limited purposed of completing third-party subpoena compliance with Verizon Wireless and Motorola Mobility, LLC" and that the Court "direct the Clerk of Court to reissue the subpoenas to Verizon Wireless and Motorola Mobility, LLC with updated production/compliance dates of December 5, 2025." (Dkt. No. 198.) In her motion, Plaintiff explains that this extension is necessary due to mailing delays and "rejection of the New Jersey domestication filing." (Id.) Upon review, the Court finds that Plaintiff's motion should be GRANTED. The Clerk of Court is instructed to reissue the requested subpoenas and mail them to Plaintiff at the address indicated on the docket. The undersigned notes that Plaintiff does not explain her reasons for pursuing the "domestication" procedure Plaintiff references in her motion, but it does not appear applicable to the subpoenas at issue here. See, e.g., Calixte v. Simpson, No. 1:21-MC-12, 2022 WL 2643502, at *1 (S.D. Ohio Jan. 5, 2022) ("The [Uniform Interstate Depositions and Discovery Act] provides this Court no authority to compel the requested discovery because it applies only in state court, not federal court."); Bullard v. Norfolk S. Ry. Co., No. 7:23-CV-00930-LSC, 2024 WL 6874546, at *1 (N.D. Ala. July 10, 2024) (finding that "UDDA does not apply in this case [because a] federal court does not fall under the [] statute's definition of a foreign jurisdiction from which a foreign subpoena is issued" and that "model UDDA legislation... comments that the Act is limited to discovery in state courts." (internal quotation marks and citations omitted)). Rather, Plaintiff is responsible for service of the subpoenas in accordance with the provisions set forth in Rule 45 of the Federal Rules of Civil Procedure and is responsible for paying all costs associated with the production of documents requested by the subpoenas. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/30/2025.(kman,) (Entered: 10/30/2025)"*

ECF 227 – Even though this motion was Moot. Judge Baker’s ruling confirms that defense counse T. Chase Samples knew the Judge would approve an extension which is included in the ECF 227 filing in exhibit A pages 10-11. **Text Order ECF 237**

“TEXT ORDER. The Court extends the parties' deadline to complete the discovery implicated in the currently pending discovery motions to January 30, 2026. Further details regarding the discovery at issue are forthcoming. In light of the extended discovery deadline, the mediation deadline is extended to February 27, 2026 and the motions deadline is extended to March 31, 2026. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/04/2025. (kman,) (Entered: 12/04/2025)”

Rulings by District Judge Richard M. Gergel

ECF 219 – I filed ECF 219 on 11/6/2025. After noticing that this motion did not appear on the docket I asked a clerk about it. The clerk confirmed that she handed the document to Judge Gergel’s JA Tapscot. I later filed a Notice of objection to Judge Baker’s Order and attached the previous filed Objection and when Plaintiff looked on the docket the Notice of Objection was on the docket but the attachment was not. The actual docket gives an error message and can not be seen. The documents were later added to the docket when I contacted the 4th Circuit for Judicial Misconduct. As of today ECF 218 & 219 which is the Objection and the Notice of Objection does not appear on the docket. This is suppressing evidence and docket manipulation. Instead of ruling on my objection Judge Gergel gave defense counsel and Apple Inc. counsel 14 days to respond to my motion. **Text Order ECF 222**

“TEXT ORDER: Plaintiff has filed objections to two discovery orders of the Magistrate Judge (Dkt. Nos. 192 and 194), which was entered on the docket on October 14, 2025. (Dkt. No. 219). Pursuant to Fed. R. Civ. P. 72(b)(2), Defendants may file responses to the objections within 14 days after the objections were entered on the docket or the date in which Plaintiff served Defendants with the objections, whichever is soonest. Plaintiff may file a reply to any response of the Defendants within 7 days thereafter. AND IT IS SO ORDERED. Entered at the direction of the Honorable Richard M Gergel on 11/24/2025. (ltap,) (Entered: 11/24/2025)”

ECF 226 – Nonparty Defendant Apple Inc filed for an extension of time to respond to Plaintiff’s Objection to Magistrate Judge Baker’s Ruling on the Protective Order granted for discovery of information requested in the subpoena. The Protective Order ended Plaintiff’s discovery and Plaintiff was unable to attain evidence in support of her cyber intrusion claim.

“TEXT ORDER granting 226 Motion for Extension of Time until 12/8/25 for Apple to file a Reply to Plaintiff’s Objections. AND IT IS SO ORDERED. Entered at the direction of the Honorable Richard M Gergel on 12/1/2025.(ltap,) (Entered: 12/01/2025)”

Case No. 2:25-CV-00405-RMG-MGB

CERTIFICATE OF SERVICE

I hereby certify that on this 11th day of December, 2025, I served a true and correct copy of the foregoing **Plaintiff's Renewed and Supplemental Judicial Recusal Motion, and Motion to Expedite Ruling and Stay Proceedings** by email addressed to:

T. Chase Samples, Esq.

Jackson Lewis P.C.

Email: chase.samples@jacksonlewis.com

Joseph V. Valenza, Esq.

Jackson Lewis P.C.

Email: joseph.valenza@jacksonlewis.com

Debra Nelson

Pro Se Plaintiff